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File No.: EXP202304239

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) exercised the rights of access and erasure against MONTOIRO Y MARTÍN, S.L. (hereinafter, the respondent) without their request receiving the legally established response. The claimant states that he signed an educational contract with the respondent, without the contract specifying information on whom to address the corresponding rights regarding data protection. He indicates that on February 20, 2023, he submitted a request for access to his data and subsequent erasure of the same, with his request being delivered at the reception of the respondent's premises located in Getafe, where his request was stamped. He states that after submitting the aforementioned document, he received a WhatsApp message from the person who received his request, informing him that they did not know when he would receive a response. He provides a copy of the contract signed with the respondent and the request for access to documentation and erasure of data stamped by the respondent's center.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. There is no record of any response submitted to this agency.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claimant's requests were satisfied. Consequently, on June 3, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing. The aforementioned agreement granted the respondent a hearing period, so that within ten working days, they could present any arguments they deemed appropriate, stating, in summary, "(...) That, due to the ignorance of the person who collected the request, it was stamped and filed without being forwarded to their superiors for them to take the necessary actions.

THIRD. – That, once the management of this company became aware of the request, immediate action was taken to erase the personal data and to respond to the request of the claimant Mr. A.A.A. A document number 1 is attached as a response to the claimant."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, they may formulate any arguments they consider appropriate, without formulating arguments within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that "The procedures processed by the Spanish Agency for the Protection of Data will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints. Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure provided for in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, it was forwarded to the respondent for them to...

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proceed to its analysis, respond to this Agency within one month, and prove that it has provided the claimant with the appropriate response.

The result of this transfer did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on June 3, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. Once this period has elapsed, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of correcting any infringement of the GDPR, including “ordering the controller or processor to attend to the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to attend to such request. The burden of proof of compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the controller.

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The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them are being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the “data or processing activities to which the request refers.” The right will be considered granted if the controller provides remote access to the data, with the request being deemed attended to (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than that which is offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them and being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if not obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect third-party data.

V

Right of erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

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"1. The data subject shall have the right to obtain without undue delay from the data controller the erasure of personal data concerning them, which shall be obliged to erase without undue delay the personal data when any of the following circumstances apply:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation under Union or Member

State law applicable to the data controller;

f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to those personal data, or any copies or replications of them.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

a) for exercising the right to freedom of expression and information;

b) for compliance with a legal obligation which requires processing by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;

d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impair the achievement of the objectives of that processing, or

e) for the establishment, exercise, or defense of legal claims."

Article 32 of the LOPDGDD, Data Blocking, establishes that:

"1. The data controller shall be obliged to block the data when rectifying or erasing it.

2. The blocking of data consists of the identification and reservation of the same, adopting technical and organizational measures, to prevent their processing, including their visualization, except for making the data available to judges and courts, the Public Prosecutor's Office, or the competent Public Administrations, particularly data protection authorities, for the enforcement of possible liabilities arising from the processing and only for the limitation period of such liabilities. After that period, the data must be destroyed.

3. Blocked data may not be processed for any purpose other than that indicated in the previous paragraph.

4. When, for the fulfillment of this obligation, the configuration of the information system does not allow blocking or requires an adaptation that involves a disproportionate effort, a secure copy of the information shall be made so that there is digital evidence, or of another nature, that allows the authenticity of the same, the date of blocking, and the non-manipulation of the data during the same.

5. The Spanish Data Protection Agency and the autonomous data protection authorities, within the scope of their respective competencies, may set exceptions to the obligation to block established in this article, in cases where, given the nature of the data or the fact that they refer to a particularly high number of affected individuals, their mere retention, even blocked, could generate a high risk to the rights of the affected individuals, as well as in those cases where the retention of blocked data could imply a disproportionate cost for the data controller."

VI

Conclusion

In the present case, from the examination of the documentation provided by the parties, it has been established that the complainant exercised the rights of access and erasure of their data.

During the processing of this procedure, the entity being complained about has responded to this Agency, indicating that, due to an error, they did not address the right when the complainant exercised it and, therefore, they have now sent a letter informing that they have erased their personal data.

Analyzing the aforementioned response, the following is observed:

- Regarding the right to erasure, during the processing of this procedure, the entity being complained about has sent the complainant a letter informing them that they have proceeded to erase their data. Consequently, having addressed the right out of time, it is appropriate to uphold, for formal reasons, the complaint raised.

- Regarding the right of access, no evidence has been provided that allows considering that there has been an express response addressing the right, or denying it with justification.

In accordance with data protection regulations, the deletion of data as established in Article 32 of the LOPDGDD must be carried out through blocking; therefore, the deletion of personal data, having ceased to be necessary for the purpose that justified its processing, will not automatically imply its physical deletion. This action is subject to certain conditions aimed at ensuring and guaranteeing the affected party's right to the protection of their personal data.

The blocked data will remain available to the Courts, the Public Prosecutor's Office, or other competent public administrations, particularly data protection authorities, for the requirements of possible liabilities arising from the processing and for the statute of limitations of these.

Therefore, the request for access must be addressed in accordance with the provisions of Article 15 of the GDPR. The request made obliges the data controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Since a copy of the necessary communication that must be sent to the claimant informing them of the decision made regarding the request to exercise the right of access is not attached, it is appropriate to uphold the claim that initiated this procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge MONTOIRO Y MARTÍN, S.L. with NIF B86433505, to send the claimant a certification within ten working days following the notification of this resolution, addressing the requested right or denying it with justification indicating the reasons why the request cannot be met, in accordance with the provisions of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: TO UPHOLD for formal reasons, the claim made by Mr. A.A.A. against MONTOIRO Y MARTÍN, S.L. However, the issuance of a new certification by the respondent is not warranted, as the response was issued late, and no additional actions are required from the data controller.

THIRD: TO NOTIFY this resolution to Mr. A.A.A. and to MONTOIRO Y MARTÍN, S.L.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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